

Sonu Alias Hemlata vs Nilesh Alias Poonam on 19 July, 2024

Author: Prem Narayan Singh

Bench: Prem Narayan Singh

1
IN THE HIGH COURT OF MADHYA PRADESH
AT INDORE
BEFORE
HON'BLE SHRI JUSTICE PREM NARAYAN SINGH
ON THE 19th OF JULY, 2024
CRIMINAL REVISION No. 1341 of 2024
SONU ALIAS HEMLATA
Versus
NILESH ALIAS POONAM

Appearance:

Ms. Savita Rathore, learned counsel for the petitioner.
Shri Rohan Sothiya, learned counsel for the respondent.

This revision coming on for admission this day, the court
following:

ORDER

1. This criminal revision under Section 19(4) of the Family Courts Act is filed by the petitioner being aggrieved by the order dated 25.01.2024 passed by the Principal Judge, Family Court, Indore in MJCR No.1162/2022 whereby the learned Family Court has rejected the application under Section 125 of Cr.P.C filed by the petitioner for grant of interim maintenance as she has already been awarded Rs.7500/- as interim maintenance by the Principal Judge, Family Court, Indore vide order dated 16.12.2023 whereby the application filed by the applicant under Section 24 of Hindu Marriage Act, 1955.

2. Brief facts of the case are that the marriage of the petitioner and respondent was solemnized on 12.05.2003 as per the Hindu rituals and 2 CRR-1341-2024 customs. It is alleged that after the marriage, the petitioner and the respondent were blessed with one son and daughter out of their wedlock. After fifteen years of marriage the wife was abandoned by her husband without any reason and thereafter she started living with her father. Thereafter the husband also filed a divorce petition against the wife before the family Court. Wherein the wife has filed an application under Section 24 of Hindu Marriage Act, 1955 for grant of interim maintenance, which was partly allowed by the Family Court by directing the husband to pay Rs.7,500/- as interim maintenance. So also the petitioner/wife has filed an application under Section 125 of Cr.P.C before the Family Court for enhancement of maintenance, wherein the learned Family Court has dismissed the said application by holding that since the wife is already getting Rs.7500/- as interim maintenance so also the husband has the responsibility of his children along with one adopted girl child, therefore, there is no need for enhancement of the interim maintenance amount and therefore, rejected the

application. Being aggrieved the wife has preferred the present criminal revision.

3. During the course of the arguments learned counsel petitioner/wife submitted that the respondent/husband has preferred a revision petition Cr.R. No.816/2024 wherein this court vide order dated 23.04.2024 has reduced the maintenance amount from Rs.7500/- to Rs.5000/- and hence she prays that the interim maintenance amount of Rs.5,000/- is a very meager amount and prays for modification of the aforesaid order dated 16.12.2023. In support of her contentions counsel relied upon the judgment dated 24.11.2022 passed by 3 CRR-1341-2024 Hon'ble High Court of Karnataka in the case of Mr. Uday Nayak vs. Mrs. Anita Nayak [W.P. No.22006 of 2022(GM-FC)].

4. Learned counsel for the respondent/husband has submitted that Family Court has passed the order dated 16.12.2023 after considering all the aspects and perspectives, so also the fact that respondent/husband is also bearing the educational expenses of his two children and one adopted girl child, therefore, the request of the petitioner, to modify the order of interim maintenance needs to be rejected.

5. In the course of arguments learned counsel for the petitioner/wife has fairly conceded that as per the law laid down by Hon'ble Apex Court in the case of Rajnesh vs. Neha & Ors. reported as (2021)2 SCC 324 the maintenance amount be adjusted.

6. Learned counsel for the respondent also supported the contentions of the learned counsel for the petitioner and prayed that the maintenance amount be adjusted.

7. Considering the rival submissions, the facts and circumstances of the case, so also the law laid down by Hon'ble Apex Court in the case of Rajnesh vs. Neha (Supra) this Court is of the view that there is no requirement to modify the impugned order of interim maintenance. Certainly, when the proceedings under Hindu Marriage Act is culminated, petitioner will be entitled for interim maintenance under Section 125 of Cr.P.C in this case, as per law, as the wife cannot be jettisoned to lead a destitute life. However, since the proceedings under the Hindu Marriage Act 4 CRR-1341-2024 is pending and petitioner is receiving the interim maintenance amount under Section 24 of Hindu Maintenance Act, she will not be entitled for additional interim maintenance under Section 125 of Cr.P.C in this case.

8. Under such circumstances this revision petition is dismissed and impugned order is hereby affirmed with liberty for petitioner to file another application for interim maintenance, when the proceedings in Hindu Marriage Act is concluded or terminated due to any reason. However, learned Principal Judge, Family Court is directed to expedite the trial, preferably decide the matter within four months from the receipt of this order without being influenced by impugned order as well as the observations made by this in this order.

Accordingly, Cr.R. No.1341/2024 is disposed of in view of the aforesaid.

(PREM NARAYAN SINGH) JUDGE sumathi